

24VECV01158 24VECV01158

County: los-angeles

Division: Civil Law and Motion

Department: O

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Case Number: 24VECV01158 Hearing Date: August 7, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

DAVID COHEN, a Minor,

by and through his Guardian Ad Litem, LISA COHEN,

Plaintiff,

vs.

CLUBCORP BRAEMAR COUNTRY CLUB, INC., a

Corporation, MAILANI SCHERZBERG, SUSAN PENDO, and DOES 1 through 40,

Inclusive,

Defendants.

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CASE NO.: 24VECV01158

ORDER

DENYING PETITIONER'S PETITION FOR MINOR'S COMPROMISE

I.

BACKGROUND

Plaintiff David Cohen

("Claimant"), a minor

by and through his Guardian Ad Litem Lisa Cohen ("Petitioner"), brings this negligence action against Defendants, Clubcorp Braemar Country Club, Inc., Mailani Scherzberg, and Susan Pendo (collectively "Defendants"). Claimant alleges he was injured at tennis camp when he was struck in the face by the tennis racket by another camper.

Petitioner filed the

instant Petition for Minor's Compromise on behalf of Claimant.

II.

PROCEDURAL

HISTORY

On March 8,
2024, Petitioner filed this action alleging negligence.

On May 22,
2026, Petitioner filed a Notice of Settlement.

On July 17,
2026, Petitioner filed the instant Petition, which is unopposed.

III.

LEGAL STANDARD

An
enforceable settlement of a minor's
or incompetent's claim requires court approval. (See
Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372.) [1]

Probate
Code § 3600, et seq., governs how the settlement proceeds are to be
paid. Pursuant to Probate Code § 3601, the order shall approve
payment of reasonable expenses from the settlement as follows:¿

The court making the order or giving the judgment
referred to in Section 3600, as a part thereof, shall make a further order
authorizing and directing that such reasonable expenses (medical or otherwise
and including reimbursement to a parent, guardian, or conservator), costs, and
attorney's fees, as the court shall approve and allow therein, shall be paid
from the money or other property to be paid or delivered for the benefit of the
minor or incompetent person.

(See Prob.
Code § 3601(a).)¿

In

cases pursuant to Probate Code § 3601, “unless the court has approved the fee agreement in advance, the court must use a reasonable fee standard when approving and allowing the amount of attorney’s fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability.” (See Rules of Court 7.955(a)(1).) In doing so, “[t]he court must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney’s fee would be affected by later events.” (See id., rule 7.955(a)(2).)

There

are several nonexclusive factors a Court may consider in determining a reasonable attorney’s fee. (See id., rule 7.955(b).) Rule 7.955(c) requires that a petition requesting Court approval and allowance of an attorney’s fee under 7.955(a) must include a declaration from the attorney that addresses the factors listed in 7.955(b) that are applicable to the matter before the Court.

“In any case

in which the court orders that funds to be received by a minor or a person with a disability must be deposited in a financial institution and not disbursed without further order of the court, the order must include a provision that a certified or filed endorsed copy of the order must be delivered to a manager at the financial institution where the funds are to be deposited, and that a receipt from the financial institution must be promptly filed with the court, acknowledging receipt of both the funds deposited and the order for deposit of funds.” (See id., rule 7.953(a).)

IV.

ANALYSIS

Claimant has

agreed to settle his claims against Defendants in exchange for \$85,000.00. (See Pet., ¶ 10.) Claimant sustained injuries, including “[t]wo broken teeth, one loosened/damaged tooth.” (See id., ¶ 6.) Claimant has recovered completely from his injuries. (See id., ¶ 8(a), Attach. 8.)

If
approved, \$3,703.25 will
be used for attorney fees and \$21,250.00 for medical expenses,
leaving a balance of \$60,046.75 to be
deposited in an insured account. (See id., ¶ 16, 18a(2).)

Petitioner's
counsel, David B. Bobrosky, requests attorney fees which comprise 25% of the
settlement amount in his declaration but the actual amount requested in the
Petition is far less, just over 4%, which is imminently reasonable. (See
Attachs. 13(a), ¶ 4, 17(a).) Counsel was able to obtain a favorable settlement
for Claimant. (See id.) This case settled a little over two years after
it commenced.

However, there
are a few defects. First, the Petition, ¶ 16, states \$21,250.00 of the
settlement proceeds will be paid to satisfy medical expenses. However, 12(a)
and 12(b) do not reflect a total of \$21,250.00. Instead, the the attorney
declaration states, "The paid amount of medicals only totaled \$4,028.14 for the
care and treatment received." (Attach. 13(a), ¶ 5b.) Second, Attachment 18a(2) which
must contain the name, branch, and address of each financial institution where
the Claimant's settlement proceeds are to be deposited is not attached to the Petition.
Further, MC-355, ¶ 5 should state the balance of settlement proceeds to be
deposited at the financial institution stated on MC-351, ¶ 16(f).

Thus, the
Court DENIES Petitioner's Petition for Minor's Compromise.

V.
CONCLUSION

Based on the
foregoing, the Court DENIES Petitioner's Petition for Minor's Compromise.

IT
IS SO ORDERED.

DATED: August 7, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.